



IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

(i) CRM-M-33789 of 2026(O&M)
DECIDED ON: 12.06.2026

Manpreet Singh & Anr.

...Petitioners

Versus

State of Punjab

...Respondent

(ii) CRM-M-33794 of 2026(O&M)

Kuldeep Singh

...Petitioner

Versus

State of Punjab

...Respondent

CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Aakash Singla, Advocate
For the petitioners.

Mr. Ferry Sofat, Addl. AG Punjab.

DEEPAK GUPTA, J.

Petitioners Manpreet Singh & Sandeep Singh in **CRM-M-33789-2026** and petitioner Kuldeep Singh son of Tek Singh in **CRM-M-33794-2026** have approached this Court by way of the present petitions filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 seeking the concession of anticipatory bail in FIR No.60 dated 26.04.2026 registered at Police Station Arniwala, District Fazilka under Sections 115(2), 140(3), 351(2), 304, 191(3) and 190 of the Bharatiya Nyaya Sanhita, 2023 and Sections 25 & 27 of the Arms Act.

2. The FIR has been registered on the statement of complainant Pawandeep Singh son of Surinder Singh. As per the prosecution version, an altercation had taken place about 20–25 days prior to the occurrence, when the motorcycle of the complainant allegedly collided with the Scooty of petitioner Kuldeep Singh. Though the matter appeared to have subsided, the complainant



alleged that on 26.04.2026 at about 10.00 a.m., when he was returning from his agricultural fields after serving meals to his father, he was intercepted by the accused persons (petitioners & other co-accused) near the village chowk. It is alleged that the assailants, including the present petitioners, were armed with baseball bats and firearms. The complainant was allegedly assaulted, forcibly dragged to the house of petitioner Kuldeep Singh, confined by being tied to a pole in the courtyard and subjected to further assault. It is further alleged that his mobile phone was snatched and that injuries were also caused to Baljeet Singh and Gurveer Singh, when they intervened to rescue the complainant. On the basis of the aforesaid allegations, the present FIR came to be registered.

3. Learned counsel appearing for petitioner Kuldeep Singh submits that the petitioner has been falsely implicated owing to political rivalry. It is argued that the complainant is closely associated with the ruling political dispensation, whereas petitioner Kuldeep Singh and his family are politically aligned with the opposition. It is further contended that the FIR is a fallout of a pre-existing civil dispute and that the complainant party has roped in several members of the petitioner's family and their associates merely because of their participation in local Panchayat affairs.

4. It is further argued that the so-called independent witnesses are not independent at all and are politically aligned with the complainant. Learned counsel has referred to certain photographs annexed with the petition to contend that the witnesses projected as passers-by were in fact actively assisting the complainant party.

5. Learned counsel further submits that the petitioners themselves suffered injuries in the occurrence. Reference has been made to the medical documents pertaining to petitioner Kuldeep Singh to contend that he sustained a grievous injury. It is argued that despite the accused side suffering injuries, the police initially refused to record their version and a cross-version came to be recorded only after intervention of senior police officials. It is thus contended that the case is one of version and cross-version and, at this stage, it cannot be conclusively determined as to which party was the aggressor.



6. Learned counsel has also questioned the addition of Section 140(3) BNS and submits that the allegation of kidnapping has been introduced subsequently only to aggravate the nature of the offence and to defeat the claim for anticipatory bail. It is further argued that no injury has been attributed to petitioner Kuldeep Singh and that the allegations regarding his having pointed a pistol, raised a lalkara and covered the face of the complainant are exaggerated and false. Reliance is also placed upon the delay in lodging of the FIR, which, according to the petitioners, creates doubt regarding the prosecution version.

7. In addition to above contentions, on behalf of petitioners Manpreet Singh and Sandeep Singh, it has been argued that though injuries have been attributed to them, the injuries allegedly caused by them are simple in nature and are not on any vital part of the body. It is further submitted that two co-accused have already been granted interim anticipatory bail by a Coordinate Bench and, therefore, the petitioners also deserve the same relief on the ground of parity.

8. *Per contra*, learned State counsel has opposed the petitions. It is submitted that the allegations levelled in the FIR are grave and specific. Particular emphasis has been laid upon the allegation that the complainant was forcibly abducted, taken to the house of one of the accused (petitioner Kuldeep), wrongfully confined and assaulted by a group of assailants. It is contended that petitioner Kuldeep Singh played a central role in the occurrence by allegedly dragging the complainant to his house after threatening him with a firearm. It is further submitted that the weapons used in the commission of the offence are yet to be recovered and custodial interrogation of the petitioners is necessary for a fair and effective investigation.

9. I have heard learned counsel for the parties and have perused the record.

10. The parameters governing grant of anticipatory bail are well settled. While considering a petition under Section 482 BNSS (corresponding to Section 438 Cr.P.C.), the Court is required to examine the nature and gravity of the



accusations, the specific role attributed to the accused, the requirement of custodial interrogation, the possibility of recovery of incriminating articles and the overall impact of grant of pre-arrest bail upon a fair investigation. The extraordinary relief of anticipatory bail is not intended to shield an accused against whom serious and specific allegations requiring thorough investigation have been levelled.

11. In the present case, the prosecution version cannot be viewed as a mere case of a village quarrel or exchange of injuries between two rival groups. The gravamen of the allegations is that the complainant was intercepted on a public road by large number of assailants, including the petitioners, forcibly dragged away, taken to the house of one of the accused – petitioner Kuldeep, tied to a pole in the courtyard and thereafter subjected to assault. It is further alleged that his mobile phone was snatched and that injuries were also caused to the persons, who attempted to rescue him. Thus, the allegations, if taken at their face value, disclose offences involving wrongful restraint, abduction, wrongful confinement, assault by an unlawful assembly and use of firearms.

12. So far as petitioner Kuldeep Singh son of Tek Singh is concerned, the allegations against him are specific and not merely by way of vicarious liability. He is alleged to have taken out a pistol, raised a lalkara, covered the face of the complainant, dragged him with the assistance of other accused persons and taken him to the place, where he was allegedly confined. The role attributed to him is, therefore, central to the occurrence as projected by the prosecution.

13. Likewise, petitioners Manpreet Singh and Sandeep Singh have also been specifically named in the FIR and are attributed overt acts of causing injuries to the complainant. Merely because the injuries allegedly caused by them are stated to be simple in nature would not, by itself, entitle them to anticipatory bail. The allegations have to be appreciated in the context of the entire occurrence and not in isolation. The prosecution case is that all the accused formed an unlawful assembly and acted in concert while executing the alleged assault and confinement of the complainant. Therefore, at this stage, the



role of each accused cannot be compartmentalized solely on the basis of the nature of the injury attributed to him.

14. Much emphasis has been laid by learned counsel for the petitioners upon the existence of a cross-version and the injuries allegedly suffered by petitioner Kuldeep Singh. However, the mere existence of a version and cross-version does not automatically entitle an accused to the concession of anticipatory bail. Whether one party was the aggressor, whether the injuries on either side were sustained during the same occurrence and what effect such circumstances ultimately have on the prosecution case are matters, which fall within the domain of investigation and trial.

15. At this stage, the Court is not required to conduct a meticulous examination of the rival versions or to record findings upon their correctness. Suffice it to observe that the defence plea regarding injuries suffered by petitioner Kuldeep Singh raises disputed questions of fact, which cannot be conclusively adjudicated in proceedings seeking anticipatory bail.

16. Similarly, the contention that the FIR has been lodged due to political rivalry also raises a matter of defence. Allegations of political animosity, though relevant for purposes of trial, cannot by themselves constitute a ground for grant of anticipatory bail, where the FIR contains specific allegations and attributes definite roles to the accused persons.

17. The plea of parity based upon interim protection granted to certain co-accused is equally unavailing. The principle of parity is not to be applied mechanically. The role attributed to the present petitioners is required to be independently assessed on the basis of the allegations appearing in the FIR and the requirements of investigation.

18. Learned State counsel has further submitted that the weapons allegedly used in the occurrence are yet to be recovered. Having regard to the nature of the allegations and the stage of investigation, this Court is of the considered view that grant of anticipatory bail at this stage may impede a fair and effective investigation.



19. Considering the seriousness of the allegations, the specific roles attributed to the petitioners, the allegation of forcible abduction and confinement of the complainant, the requirement of recovery of weapons and the overall circumstances of the case, this Court does not find it to be a fit case for exercise of the extraordinary jurisdiction of granting anticipatory bail.

20. Accordingly, both the petitions are dismissed.

21. It is, however, clarified that any observation made herein is confined solely to the adjudication of the present petitions and shall not be construed as an expression on the merits of the case during investigation or trial.

12.06.2026

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**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned : Yes/No

Whether reportable : Yes/No

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